

consideration and deny the [moving party's] motion.” (*Id.* at p. 856.)¹

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

Similarly, “[a] party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. ‘A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.’” (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630 [internal citations omitted].)

II. Request for Judicial Notice

Plaintiff seeks judicial notice of the following documents:

- 1) Complaint filed with the Superior Court of Alameda on November 17, 2021, case no. 21CV002729 (Ex. 1);
- 2) Notice of transfer of civil matter filed with the Superior Court of Santa Clara County on August 23, 2022, case no. 22CV402044 (Ex. 2);
- 3) Articles of Organization of a Limited Liability Company for Double L Ranches, LLC filed with the CA Secretary of State on August 5, 2013. (Ex. 3);

Plaintiff’s request for judicial notice of Exhibits 1 and 2 is **GRANTED**. (Evid. Code, § 452, subd. (d).) The request for judicial notice of Exhibit 3 is likewise **GRANTED**. (Evid. Code, § 452, subd. (c).)

III. Declaratory Relief Generally

“Code of Civil Procedure section 1060, which governs actions for declaratory relief, provides: ‘Any person interested under a written instrument ... , or under a contract, or who desires a declaration of his or her rights or duties with respect to another ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.’” (*California Public Records Research, Inc. v. County of Yolo* (2016) 4 Cal.App.5th 150, 185.)

¹ See also *Birdsall v. Helfet* (2025) 113 Cal.App.5th 558, 568 (“The court’s sole function on a motion for summary judgment is issue-finding, not issue-determination. The judge must simply determine from the evidence submitted whether there is a ‘triable issue as to any material fact.’”)

The sole purpose of this action is to determine who is the general partner of the Orchard Partnership under the LP Agreement.

IV. Removal of General Partner

a. Plaintiff's Burden

Plaintiff asserts that there is no dispute that Orchard was the general partner of the Orchard Partnership before July 2019. (Motion for Summary Judgment (“Motion”), p. 9:17-18; Opposition, p. 4:4-5.) Plaintiff next contends that the LP Agreement states that the general partner may be removed for cause upon unanimous affirmative vote of all of the Limited Partners. (UMF 103.) The relevant language of the LP Agreement states:

5.6. Removal of General Partner. The General Partner may be removed for cause as reasonably determined in good faith upon the unanimous affirmative Vote (called expressly for that purpose) of all the Limited Partners. For purposes of this Section, “cause” means and is limited to fraud, deceit, and embezzlement. Written notice of the General Partner’s removal shall be served upon the General Partner by certified mail stating the cause thereof. The notice shall set forth the day on which the removal is to be effective, and that date shall not be less than thirty (30) days after the service of notice on the General Partner. If there is no other remaining General Partner, and the Limited Partners fail to Vote to elect a new General Partner and continue the activities of the Partnership pursuant to Section 2.4 within thirty (30) days after the removal becomes effective, the Partnership shall be dissolved and its business shall be wound up and terminated. Any dispute as to the existence of “cause” shall be resolved pursuant to Section 18.8. Except as provided in this Section 5.66, the General Partner may not be expelled or removed from the Partnership by any means.

(2023 Declaration of McAfee (“2023 McAfee Decl.”), Ex. A, § 5.6 [emphasis original].)²

Plaintiff contends that based on the language of the LP Agreement, two requirements must be met for removal: 1) unanimous vote of all limited partners to remove the general partner; and 2) the existence of good cause for the removal. (UMFs 103-105 [McAfee Decl., Ex A; Solove Decl., Exs. 11-12].) In Chillara and Dhar’s deposition testimony, they each state that they carefully reviewed the LP Agreement and agree that in order to remove a general partner, there needed to be a unanimous, affirmative vote of all the Limited Partners. Additionally, they both state there were no exceptions to the unanimous requirement. (Solove Decl., Ex. 11, pp. 148-171; Ex. 12, pp. 104, 148, 149, 154.)

² The McAfee Declaration, cited as evidence in the separate statement, was filed on January 5, 2023 in support of Plaintiff’s opposition to Defendants’ motion for summary judgment. (See e.g., UMF 103.)

Plaintiff next asserts that there is no dispute that the July 2019 vote to remove Orchard was not unanimous, as Chillara and Plaintiff were prevented from voting. (UMF 124.) Plaintiff proffers sufficient evidence that Park Capital and Chillara were not allowed to vote. (See Solove Decl., Ex. 4 [Chillara's RFA 21].) Plaintiff refers to section 15.4 of the LP Agreement which states that in actions requiring the vote of all Limited Partners, all Limited Partners must be present in person, by telephone, or by proxy and that the LP Agreement does not provide for action to be taken by written vote. (UMF 126.) Despite this, a voting form was circulated to all Limited Partners except Plaintiff prior to the July 2019 meeting. (UMFs 112, 113.) Plaintiff contends that there are no exceptions in the LP Agreement regarding the unanimous requirement and that California law indicates the LP Agreement is controlling. (UMFs 103, 107; Motion, p. 11:10-12, citing Corp. Code, § 15901.10.) Section 15901.10, subdivision (a) states that a partnership agreement governs relations among the partners, subject to several inapplicable exceptions in subdivision (b). (See Corp. Code, § 15901.10, subd. (a).)

Finally, Plaintiff also notes that California law permits situations in which a person is both a general partner and a limited partner and has the rights, powers, duties, and obligations provided by section 15900 et seq. and the partnership agreement in both capacities. (Motion, p. 12, fn. 7; Corp. Code, § 15901.13.)

Plaintiff continues, however, that even if the unanimous requirement was met, Orchard was still not voted out because the "for cause" requirement in the LP Agreement was also never met. (Motion, p. 12:9-12.) Plaintiff asserts that the July 2019 meeting minutes state the *only* alleged causes are as follows: 1) Orchard declined to file a lawsuit against Double L in June 2019; and 2) McAfee's failure to disclose residual interest in Double L through McAfee farms. (UMFs 110, 114-118.) Plaintiff contends that neither cause has merit.

As to the first cause, Plaintiff states that each Limited Partner signed a subscription agreement acknowledging they had limited rights with respect to management and control of the Orchard Partnership. (UMFs 37-40.) The LP Agreement provided absolute control to the general partner with respect to decision-making over bringing litigation. (UMF 119; LP Agreement, § 5.2.3.) Section 5.1 of the LP Agreement states that "all powers of the Partnership shall be exercised exclusively by or under the direction of the General Partner. . . ." Section 5.2.3 states that the general partner will "[m]anage, hold, sell, transfer, exchange, pledge, . . . and exercise all rights, powers, privileges and other incidents of ownership or possession with respect to al such asserts including . . . the commencement and settlement or compromise of actions and administrative proceedings with respect to the investments and other similar matters." (2023 McAfee Decl., Ex. A, §§ 5.1, 5.2.3.) Further, Article 6 of the LP Agreement restricts the Limited Partner's authority to: take any action that binds the partnership; hold itself out as having the power to bind the partnership; incur any obligation or responsibility on behalf of the partnership; knowingly act in violation of the agreement, etc. (UMF 33; 2023 McAfee Decl., Ex. A, Art. 6.) Thus, Plaintiff proffers evidence that the LP Agreement does not require the Orchard Partnership to file any lawsuit, even if requested by the Limited Partners.

As for the second cause, defendant Dhar stated in an email to Limited Partners that

“the ‘cause’ is specifically deceit (i.e. knowingly or recklessly misrepresenting facts with the purpose of deceiving LPs).” (Solove Decl., Ex. 14.) The minutes from the July 2019 meet indicate that the second cause was related to a phone call where McAfee stated that his investment interest was in the 12-13% range, “which is material information withheld from the LP investors” and whether this percentage was a “small” investment interest. (UMF 117 [2023 Chillara Decl., Ex. P.]

Plaintiff contends that McAfee made a disclosure to the Limited Partners before they purchased interest in the Orchard Partnership. (Motion, p. 14:18-23.) Plaintiff states that each Limited Partner acknowledged that they had the opportunity to do due diligence before making their investment, had the opportunity to review all books and records they wanted, and represented they consulted with professionals regarding the investment. (UMFs 25, 38, 121, 122, 123.) Further, Park Capital made disclosures of pre-existing residual in Double L through McAfee Farms and therefore, there was no fraud, deceit, or embezzlement. (Motion, p. 15:15-18, citing UMFs 18, 41, 46, 47.) The asserted disclosure states:

One of the General Partners, Park Capital Management LLC, managed by Adam McAfee, owns a small membership interest in the Project Company through a residual interest from Park Capital Management’s 15-year investment in McAfee Farms, LLC, a member of Double L Ranches.

(2023 McAfee Declaration, Ex. D, p. 7; Ex. G, p. 1.)³

Plaintiff concedes, however, that there is a dispute over the meaning of the word “small” in the disclosure and whether 12-13% is, in fact, “small.” (Motion, p. 15:19-25; see *Quality Wash Group V v. V Hallak* (1996) 50 Cal.App.4th 1687, 1694 [“Where the facts **are not in dispute**, the [interpretation of a written instrument] is one of law.”][emphasis added].) Plaintiff argues that even with a dispute over the meaning of “small,” it is merely a dispute related to ambiguity and a contractual failure of meeting of the minds but does not rise to fraud, deceit, or embezzlement to support a for cause removal. (*Ibid.*) While it may be the case that the conduct does not rise to a level of fraud or deceit, this determination must be made by a trier of fact and is therefore not properly decided on a motion for summary judgment. (See e.g., *Salazar v. Target Corp.* (2022) 83 Cal.App.5th 571, 579.)

Based on the foregoing, and having carefully reviewed all the evidence and the record, the Court finds that there is at least one triable issue of material fact in this action. As a result, the Court need not and does not address Plaintiff’s remaining arguments, and the burden does not shift to Defendants. (See *Aguilar, supra*, 25 Cal.4th at p. 850 [if there is a single issue that would allow a trier of fact to find in favor of the party opposing the motion in accordance with the applicable standard of proof, the motion must be denied].)

³ This quote appears in Exhibit D to the 2023 McAfee Declaration, which was filed under seal. However, the exact language quoted above also appears in Exhibit G to the 2023 McAfee Declaration, which was not filed under seal.

Accordingly, Plaintiff's Motion for Summary Judgment is **DENIED**.⁴

Conclusion & Order

For all the reasons explained above, and in the broad exercise of its discretion, the Court **DENIES** Plaintiff's Motion for Summary Judgment.

SO ORDERED.

Date: August 21, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

⁴ The Court notes for the record that Defendants did not respond to Plaintiff's separate statement of undisputed facts, in violation of Code of Civil Procedure section 473c, subdivision (b)(3), which requires opposition papers to include a separate statement that responds to each of the material facts asserted by the moving party. As a result, the Court declines to rule on Defendants' objections to Plaintiff's evidence on the ground Defendants failed to comply with California Rules of Court, rule 3.1354, subdivision (b) requiring objections to specific evidence to be referenced by objection number in the right column of the separate statement in opposition. (*Demps v. San Francisco Housing Authority* (2007) 149 Cal.App.4th 564, 578 [court must rule on individual objections only when they are in proper form].) Also, the Court declines to rule on Plaintiff's objections made in reply to Defendants' opposition as the Court did not reach or rely Defendants' evidence to resolve this Motion.

Line 3

Case Name: *Raymond Tesconi v. Dark Run Ventures, Inc., et al.*

Case No.: 24CV435406

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Ashish Tripathi (“Defendant” or “Tripathi”) moves under Code of Civil Procedure Sections 405.30 and 405.32 to expunge the Notice of Pendency of Action (Lis Pendens) recorded by Plaintiff Raymond Tesconi (“Plaintiff”) against the real property located at 4298 Othello Drive, Fremont, CA 94555, Alameda County Assessor’s Parcel Number 543-0413-007-00 (the “Property”) Notice of Motion (the “Motion”) at 1:27-2:4 (filed: Feb. 13, 2026). The Motion is made on the grounds that: (1) Plaintiff’s Complaint fails to state a real property claim against Defendant, and (2) Plaintiff cannot establish the probable validity of any real property claim against Defendant, who is a bona fide purchaser for value. *Id.* at 2:6-9.

The Motion came on for hearing on August 21, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Fact Allegations & Procedural History

On March 7, 2018, Plaintiff Raymond Tesconi obtained a loan from Thurman Investments, Inc., executing a \$350,000.00 promissory note, secured by a deed of trust on real property located at 4298 Othello Drive, Fremont, California. The loan was secured by a Deed of Trust dated March 2, 2018, recorded on March 7, 2018, as Document Number 2018047045 in the Official Records of Alameda County, California.

The note bore an interest rate of 11.603% per annum, with “Interest Only Payments of \$3,384.20 - paid in monthly installments from May 1, 2018, up until April 30, 2023” (Compl. ¶ 19) and a balloon payment of the entire principal of \$350,000.00 due and payable immediately at the maturity date of April 30, 2023. Interests in the loan were transferred to MERS Fund I and subsequently to Dark Run Ventures, Inc., entities controlled by Defendant William Robinson Stuart.

In mid to late 2019, Raymond Tesconi suffered a stroke. In the first quarter of 2020, Raymond Tesconi was diagnosed with Stage 4 Colon Cancer and was forced to undergo chemotherapy. William Robinson Stuart contacted Tesconi in April 2020, introduced himself as the managing member of MERS Fund I, and asked Tesconi to come to his office to sign documents; Stuart never explained the terms of these documents to Tesconi; Tesconi informed Stuart of his illnesses and current medical treatment that interfered with his faculties and ability to think clearly.